

A PRIVACY BRIEFING

FOR PARENTS • FOR EDUCATORS

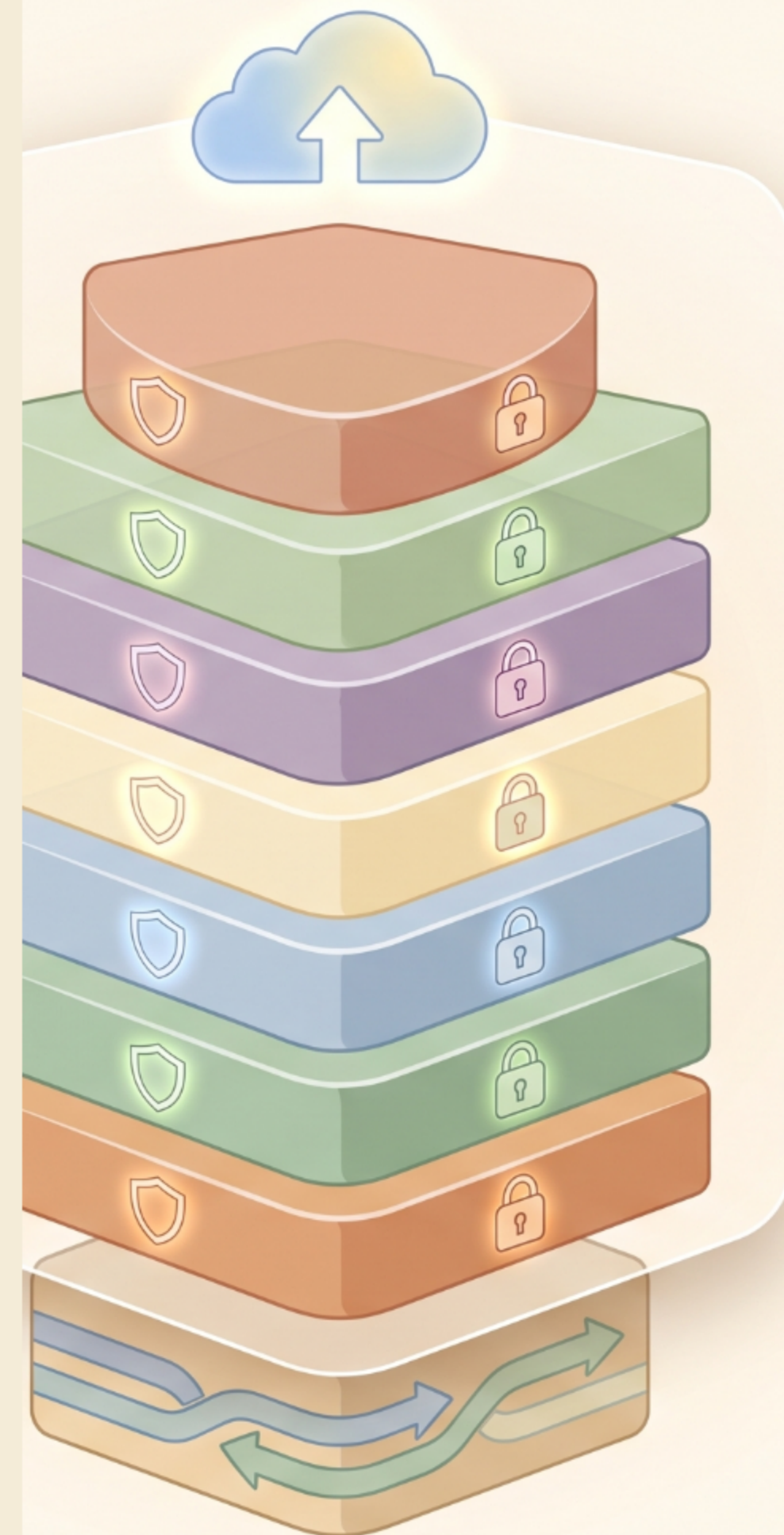
The 7-Layer Privacy Stack

Rights, responsibilities, and real data sovereignty in education.

Protecting student data beyond the vendor dashboard — a clear-eyed look at what California law actually requires.

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THE ILLUSION OF COMPLIANCE

FERPA is the floor, not the ceiling.

Why standard vendor assurances fall short.

THE COMMON ASSURANCE

"FERPA
Compliant"

is not a complete privacy strategy. It's the baseline — not the destination.

FERPA DOES NOT ADDRESS:

- ✓ **Student profiling.** Behavioral data shapes that quietly follow kids.
- ✓ **"Privacy by default" for minors.** Not required at the federal level.
- ✓ **District possession & control.** No mandate to own the data.
- ✓ **Behavioral data for AI.** Often fair game for vendor training.

The 7-Layer Privacy Stack

The required standard for California schools. Any vendor claiming "full compliance" must address all of these.

FB

LAYERS 1–3

Federal Baseline

1

FERPA

Privacy of educational records (1974)

2

PPRA

Surveys & evaluations consent (1978)

3

COPPA

Children's online privacy < 13 (1998)

CA

LAYERS 4–7

California Mandates

4

SOPIPA

No ads, no profiling, no selling (2014)

5

AB 1584

District ownership of records (2014)

6

CCPA

Right to know, delete, opt out (2018)

7

AB 2273

Privacy by default, DPIAs (2022)

THE FEDERAL BASELINES

FERPA & PPRA

Access, review, and consent — the floor of student privacy.

1

LAYER 1 • 1974

FERPA

PROTECTS:

- ✓ Privacy of student **educational records**.
- ✓ **Written consent** required for disclosure.
- ✓ Right to **inspect & review** records.
- ✓ Right to **request correction** of inaccurate records.

2

LAYER 2 • 1978

PPRA

GOVERNS:

- ✓ Surveys, analyses, and evaluations funded by the U.S. Department of Education.
- ✓ Requires **parental consent** for surveys covering protected topics.
- ✓ Often **overlooked** in vendor compliance claims.

COPPA

Children's Online Privacy Protection Rule (1998)

<13

Applies to online services directed at children under 13.



Requires **verifiable parental consent** for data collection.



Crucial for any platform requiring a direct student login.



WHY IT MATTERS

Affects the day-to-day apps used in elementary and middle schools — most directly.

CALIFORNIA'S STRICT STANCE

SOPIPA

Student Online Personal Information Protection Act (2014) — where California diverges sharply from federal law.

SOPIPA EXPLICITLY PROHIBITS:



Targeted advertising using student data



Non-educational student profiles



Selling student data

CALIFORNIA BUSINESS & PROFESSIONS CODE §§ 22584–22585



Key insight: A vendor can be fully FERPA-compliant and still violate SOPIPA.

DISTRICT OWNERSHIP & CONTROL

AB 1584

Custodians vs. owners — a vital distinction for administrators.



Districts must maintain **physical control** of student records.



Vendors are **custodians, not owners**.



Contracts must **explicitly codify** district ownership.



Warning: If the contract doesn't codify ownership, it fails state law.

CCPA & AB 2273

Expanding protections to the digital age — the two newest California layers.

6

LAYER 6 · 2018

CCPA

GRANTS PARENTS & STUDENTS:

- ✓ **Right to know** what data is held.
- ✓ **Right to delete** — applied within an educational context.

7

LAYER 7 · 2022

AB 2273

REQUIRES SCHOOLS TO:

- ✓ Apply "**privacy by default**" for users under 18.
- ✓ Run **Data Protection Impact Assessments** (DPIAs).

FOR PARENTS & FAMILIES

FROM THEORY TO PRACTICE

Parent rights in action

What you can actually do — at the school site level.

- 01 **Inspect & review** your child's educational records.
- 02 **Opt out** of non-essential data collection.
- 03 **Request deletion** of specific behavioral data under CCPA.
- 04 **Demand transparency** on third-party apps.

FEDERAL · CALIFORNIA EDUCATION CODE · CCPA



You have the right to know exactly what is happening to your child's digital footprint.

School responsibilities

Moving from marketing promises to technical reality.



Verify **code-level access logs** — not just vendor attestations.



Compliance is an **operational discipline**, not a procurement item.



Prepare for **stringent county-level audits**.

The "free" EdTech app

A single unvetted app can violate multiple layers of the stack.



SCENARIO

A teacher downloads a "free" flashcard app for classroom use.

THE RISK

Students create accounts; the app tracks device usage and behavioral habits.

THE VIOLATION

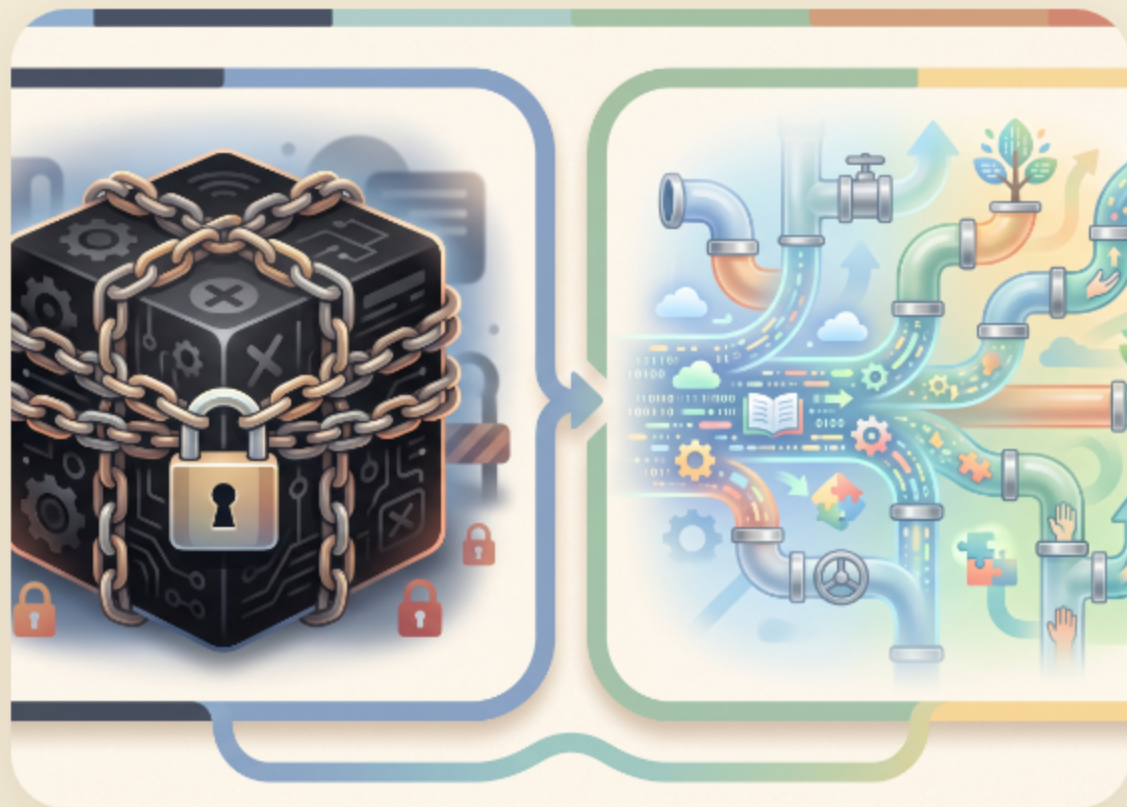
Bypasses **AB 1584** (no contract), risks **SPIPA** violations (profiling), lacks **COPPA** verifiable consent.

Takeaway: "Free" apps cost data. A single unvetted download can compromise the entire district posture.

THE PROCUREMENT PITFALL

The vendor convenience trap

The risk of closed proprietary systems — and the open-source alternative.



SCENARIO

District relies on a proprietary vendor for all analytics.

THE RISK

Vendor is acquired, pivots, or sunsets the product.

THE REALITY

District absorbs the disruption and loses the pipeline.

THE SOLUTION

Open-source infrastructure — code stays available, workflows stay inspectable.

Takeaway: *Open source is not just a budget decision — it's a control, continuity, and resilience decision.*

THE SOLUTION · LOCAL-FIRST

TRUE DATA SOVEREIGNTY

The sovereign tech stack

Local-first data analytics for districts — the practical alternative.



The simple argument: You can't leak what you don't send.



Processing stays entirely on **district-controlled hardware**.



Uses embedded analytical engines like **DuckDB** — no cloud, no network calls.



Analyzes millions of rows locally **in under a second**.



Local AI models process queries **without external APIs**.

THE BOTTOM LINE & NEXT STEPS

SAVING BUDGETS, SECURING DATA

The economics of sovereignty

Reinvesting in the classroom.

PROPRIETARY CLOUD AI

\$50K–\$200K /year

\$375K over 5 years with no residual district asset.

LOCAL HARDWARE (MAC STUDIO CLUSTER)

\$12,000 upfront

Zero marginal cost per query — depreciable district asset.

NEXT STEPS

Assess vendor agreements · demand technical evidence · invest in sovereign infrastructure. **Questions?**